

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Arlyn Rivera	Team: Squad #11	CCRB Case #: 202302805	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Monday, 04/03/2023 10:57 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/3/2024	Precinct: 32
Date/Time CV Reported Tue, 04/04/2023 3:24 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 04/04/2023 3:24 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Brendon Grogan	27219	971974	032 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Santino Gonzalez	25281	971968	019 PCT
2. PO Safet Kacaj	19968	962512	033 PCT
3. PO Tasnim Rafid	02471	972885	033 PCT
4. PO Vanessa Sanchez	16895	966834	019 PCT
5. SGT Gregory Scharkopf	04489	949635	019 PCT
6. PO Mikail Shahjahan	15725	972248	023 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Brendon Grogan	Off. Language: Police Officer Brendon Grogan made remarks upon the gender of § 87(2)(b)	A . Substantiated
B . PO Brendon Grogan	Discourtesy: Police Officer Brendon Grogan spoke discourteously about § 87(2)(b)	B . Substantiated
C . PO Brendon Grogan	Discourtesy: Police Officer Brendon Grogan spoke discourteously to an individual.	C . Substantiated
D . PO Brendon Grogan	Abuse: Police Officer Brendon Grogan threatened to arrest § 87(2)(b)	D . Within NYPD Guidelines
E . PO Brendon Grogan	Discourtesy: Police Officer Brendon Grogan spoke discourteously to § 87(2)(b)	E . Substantiated
F . PO Brendon Grogan	Abuse: Police Officer Brendon Grogan refused to provide his shield number to § 87(2)(b)	F . Unfounded
G . PO Brendon Grogan	Abuse: Police Officer Brendon Grogan refused to provide his name to § 87(2)(b)	G . Substantiated

Case Summary

On April 4, 2023, § 87(2)(b) filed this complaint via the CCRB on-line website on behalf of himself and § 87(2)(b). § 87(2)(b) is a Transgender womxn, whose identifying sex is male.

On April 3, 2023, at approximately 10:57 p.m., § 87(2)(b) called 911 because he was assaulted by an employee of the § 87(2)(b) located at § 87(2)(b) in Manhattan. PO Brendon Grogan of the 32nd Precinct responded to the 911 call. The unidentified deli owner informed PO Grogan that he did not want § 87(2)(b) in his store anymore. PO Grogan said, “I am going to tell him or her or whatever the fuck”. (**Allegation A: Offensive Language, Substantiated** and **Allegations B-C: Discourtesy, Substantiated**). PO Grogan informed § 87(2)(b) that he would be arrested if he returned to the deli (**Allegation D: Abuse of Authority, Within NYPD Guidelines**).

As PO Grogan was walking back to the police vehicle, § 87(2)(b) asked him for his name and shield number. PO Grogan said, “Back the fuck up.” (**Allegation E: Discourtesy, Substantiated**). PO Grogan did not provide his shield number (**Allegation F: Abuse of Authority, Unfounded**) or his name (**Allegation G: Abuse of Authority, Substantiated**) to § 87(2)(b).

This incident resulted in no summons or arrests.

The investigation received two video recordings from § 87(2)(b) (**BR 01, BR 02; videos, BR 03, BR 04; summaries**).

The investigation obtained body-worn camera footage from PO Grogan. The investigation obtained body-worn camera footage from PO Mikail Shahjahan of the 23rd Precinct. The investigation also obtained body-worn camera footage from Sgt. Gregory Scharkopf, PO Vanessa Sanchez and PO Santino Gonzalez of the 19th Precinct and PO Safet Jacaj and PO Tasnim Rafid of the 33rd Precinct. (**BR 05, BR 07; videos, BR 06, BR 08, BR 09, BR 10, BR 11, BR 12, BR 13; summaries**).

Findings and Recommendations

Allegation (A) Offensive Language: Police Officer Brendon Grogan made remarks upon the gender of § 87(2)(b)

Allegation (B) Discourtesy: Police Officer Brendon Grogan spoke discourteously about § 87(2)(b)

Allegation (C) Discourtesy: Police Officer Brendon Grogan spoke discourteously to an individual.

The following allegations were not raised in verified statement rather were observed during the review of PO Grogan’s body-worn camera footage.

Footage from PO Grogan’s body-worn-camera footage (**BR 05; video, BR 06; summary**) addresses these allegations. This video has no audio for the first sixty seconds. The durational timestamp will be referenced. At 07:47, the deli owner informs PO Grogan that he no longer wants § 87(2)(b) in his store. PO Grogan states, “I am going to tell him or her or whatever the fuck.”

PO Grogan (**BR 20**) did not independently recall misgendering § 87(2)(b). PO Grogan recalled using profanity once while interacting with the deli owner, however he had no independent recollection of the specific word he used. PO Grogan was shown body-worn -camera footage to refresh his recollection on making the statement, “I am going to tell him or her or whatever the fuck” while interacting with the deli owner. Upon review, PO Grogan testified that at the time he was confused about § 87(2)(b) preferred gender and pronouns because § 87(2)(b) was wearing feminine attire, was identified as a male on his identification and the deli owner was referring to § 87(2)(b) as “he/” him” during the conversation. PO Grogan said “whatever the fuck” as in “whatever it is” given the confusion at the moment with § 87(2)(b) pronouns. PO Grogan was also attempting to correct himself when he said, “or whatever the fuck”.

Administrative Guide 304-06 states that police officers must interact with members of the public in a professional and courteous manner. Police officers are prohibited from using disrespectful remarks regarding another person's gender and gender identity/expression. Members shall address the public using pronouns, titles of respect, and preferred name appropriate to the individual gender identity/expression as expressed by the individual (**BR 25**).

NYPD Disciplinary Case 79637/04 ruled that discourteous language by an officer may be justified when attempting to gain compliance with an order while attempting to maintain order during a stressful or difficult street encounter (**BR 24**).

§ 87(2)(g)

While attempting to correct himself on his confusion of § 87(2)(b) pronouns PO Grogan uttered the word "fuck" while engaging in a serene conversation with the deli owner.

§ 87(2)(g)

it is recommended that **Allegations A -C** be **Substantiated**.

Allegation (D) Abuse of Authority: Police Officer Brendon Grogan threatened to arrest

§ 87(2)(b)

Footage from PO Grogan's body-worn-camera (**BR 05**; video, **BR 06**; summary) addresses this allegation. This video has no audio for the first sixty seconds. The durational timestamp will be referenced. Between 07:47 seconds and 08:05 seconds, PO Grogan is in front of the deli speaking to the owner. The owner informs PO Grogan of the dispute that occurred between his brother, an employee of the store, and § 87(2)(b). The owner proceeds to inform PO Grogan that he no longer wants § 87(2)(b) in his store and that § 87(2)(b) does not have to worry about the money he owes to the deli. PO Grogan acknowledges the owner's request. At 08:12 seconds, PO Grogan approaches § 87(2)(b) and informs him that he is no longer welcome at the deli and if he returns, he will be arrested. PO Grogan proceeds to inform § 87(2)(b) that he is required to deliver this information to him to which § 87(2)(b) states that he knows the procedure.

§ 87(2)(b) (**BR 19**) testified that PO Grogan approached the owner of the deli, asked him what happened and what he wanted the officers to do moving forward. § 87(2)(b) heard the owner inform PO Grogan that he did not want § 87(2)(b) in his deli anymore and would like § 87(2)(b) arrested if he came back. PO Grogan approached § 87(2)(b) and informed him that he was no longer allowed to return to the store and that if he did, he would be arrested upon the deli owner's request.

PO Grogan (**BR 20**) testified that he informed § 87(2)(b) that he was no longer allowed in the deli, upon the deli owners request, and that if proceeded to return to the deli he would be arrested for trespassing.

Section 140.05 of the New York State Penal Law (**BR 21**) states that a person is guilty of trespassing when they enter or remains unlawfully in or upon premises when he is not licensed or privileged to do so and defies a lawful order not to enter or remain in a premises after it was personally communicated to him by the owner of such premises or other authorized person. Trespassing is an arrestable offense.

It is undisputable that the store owner no longer wanted § 87(2)(b) inside his property and PO Grogan communicated this information to § 87(2)(b) § 87(2)(g)

it is recommended that **Allegation D** be closed as **Within NYPD Guidelines**.

Allegation (E) Discourtesy: Police Officer Brendon Grogan spoke discourteously to § 87(2)(b)

The video (BR 02; video, BR 03; summary) recorded by § 87(2)(b) addresses this allegation. The durational time stamp will be referenced. At 00:02 seconds, § 87(2)(b) asks PO Grogan for his name twice as PO Grogan is walking towards him and they're facing each other. When § 87(2)(b) and PO Grogan are approximately less than one foot in distance § 87(2)(b) immediately proceeds to walk beside PO Grogan, at a close distance, while PO Grogan simultaneously walks past him and does not respond. § 87(2)(b) proceeds to walk beside PO Grogan and continues asking for his name. At 00:08 seconds PO Grogan states, § 87(2)(b) do me a favor, back the fuck up" as he looks at § 87(2)(b).

§ 87(2)(b) (BR 23) testified that at the end of the interaction with § 87(2)(b) PO Grogan walked back to the RMP and § 87(2)(b) proceeded to walk beside him and asks him for his name and shield number. In response PO Grogan said, "Get the fuck back, back the fuck up." § 87(2)(b) proceeded to walk to the left of PO Grogan, approximately two feet in distance, as he continued asking him for his name and shield number.

PO Grogan (BR 20) testified that when he first arrived on scene, § 87(2)(b) § 87(2)(b) and an unknown male approached the police vehicle, whose windows were rolled halfway down, and proceeded to record, photograph and curse at him. PO Grogan heard them say, "Put that fucking body-camera on", "What the fuck are you doing here?", "Punk ass motherfuckers" and "Cracker". At the end of his interaction with § 87(2)(b) PO Grogan walked back to the RMP. § 87(2)(b) § 87(2)(b) rushed him and walked in front of him. § 87(2)(b) obstructed PO Grogan from walking and almost came in contact with his chest. § 87(2)(b) and § 87(2)(b) proceeded to walk next to PO Grogan, approximately less than one foot away. PO Grogan ordered § 87(2)(b) to "back up". § 87(2)(b) continued to obstruct PO Grogan from walking and informed him that he was not going anywhere until he obtained his information. PO Grogan told § 87(2)(b) to "back the fuck up". PO Grogan used profanity because he was in a stressful situation in which he was being obstructed from walking back to the RMP and felt that from the moment he arrived on scene he was being harassed by § 87(2)(b).

Administrative Guide 304-06 states that police officers must interact with members of the public in a professional and courteous manner (BR 25).

NYPD Disciplinary Case 79637/04 ruled that discourteous language by an officer may be justified when attempting to gain compliance with an order while attempting to maintain order during a stressful or difficult street encounter (BR 24).

In the comprehensive video footage § 87(2)(b) and § 87(2)(b) do not obstruct PO Grogan's walkway to the RMP in any apparent way for the duration of the interaction. PO Grogan does not issue § 87(2)(b) any orders before telling him to "back the fuck up" in attempts to gain compliance in circumstances in which he considered stressful.

§ 87(2)(g)

it is recommended that Allegation E be Substantiated.

Allegation (F) Abuse of Authority: Police Officer Brendon Grogan refused to provide his shield number to § 87(2)(b)

Allegation (G) Abuse of Authority: Police Officer Brendon Grogan refused to provide his name to § 87(2)(b)

The video (BR 02; video, BR 03; summary) recorded by § 87(2)(b) addresses these allegations. The durational time stamp will be referenced. At 00:02 seconds, § 87(2)(b) asks PO Grogan for his name twice as PO Grogan is walking towards him and they're facing each other.

While PO Grogan simultaneously walks past § 87(2)(b) he does not respond. § 87(2)(b) proceeds to walk beside PO Grogan and asks for his name one additional time. PO Grogan does not reply to this request. At 00:08seconds, § 87(2)(b) asks PO Grogan for his name two additional times before PO Grogan approaches the front driver side of the RMP to go inside. At 00:21 seconds, § 87(2)(b) states, “I am asking you again” twice as he is standing in front of the RMP. Simultaneously PO Grogan gets inside the front driver side seat of the RMP. § 87(2)(b) goes on the sidewalk and PO Grogan proceeds to drive away in the RMP.

§ 87(2)(b) (BR 23) testified that he asked PO Grogan for his name and shield number three to four times. PO Grogan did not provide his name or shield number during any of his requests.

PO Grogan (BR 20) testified that upon him walking back to his vehicle, § 87(2)(b) asked for his name and shield number approximately two to three times to which he verbally refused. Per patrol guide procedure, according to PO Grogan, he was not required to verbally provide his name or shield number as long as it was not being obstructed. In addition, PO Grogan testified that § 87(2)(b) captured images and videos of his name and shield number at the beginning of the incident with his body-camera and cellphone. PO Grogan saw § 87(2)(b) and § 87(2)(b) zoom into his name and shield number, from approximately six to seven feet away, to capture videos and photograph of it. From PO Grogan’s understanding § 87(2)(b) and § 87(2)(b) were able to capture clear images and videos of his name and shield number.

In the comprehensive footage § 87(2)(b) did not ask PO Grogan for his shield number for the duration of their interaction. Therefore, it is recommended that **Allegation F** be **Unfounded**.

Administrative Guide Procedure 304-11 states that when a uniformed officer of the service interacts with a member of the public and/or concludes law enforcement activities, they are to state their name courteously and clearly or otherwise provide it to anyone who requests them to do so (BR 26).

NYC Administrative Code § 14-174 states that officers are to identify themselves by providing their name, rank, and command to any person requesting identifying information (BR 27)

Because the comprehensive video footage shows that PO Grogan did not provide his name after being asked numerous times by § 87(2)(b) § 87(2)(g) it is recommended that **Allegation G** be **Substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 14).
- § 87(2)(b)
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- PO Grogan has been a member of service for has been a member of service for one year and has been a subject in three other CCRB complaints and five other allegations, none of which were substantiated. § 87(2)(g)
§ 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- A FOIL request for a Notice of Claim was submitted to the New York City Comptroller’s Office on July 6, 2023. The results will be added to the case file upon receipt (BR 16).

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RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad: 11

Investigator: Arlyn Rivera Investigator Arlyn Rivera. 07/10/2023
Signature Print Title & Name Date

Squad Leader: Edwin Pena IM Edwin Pena 07/10/2023
Signature Print Title & Name Date

Reviewer: _____

Signature	Print Title & Name	Date
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